

ANNEXATION REPORT & STAFF REPORT

Stanczyk Summation

Annexation

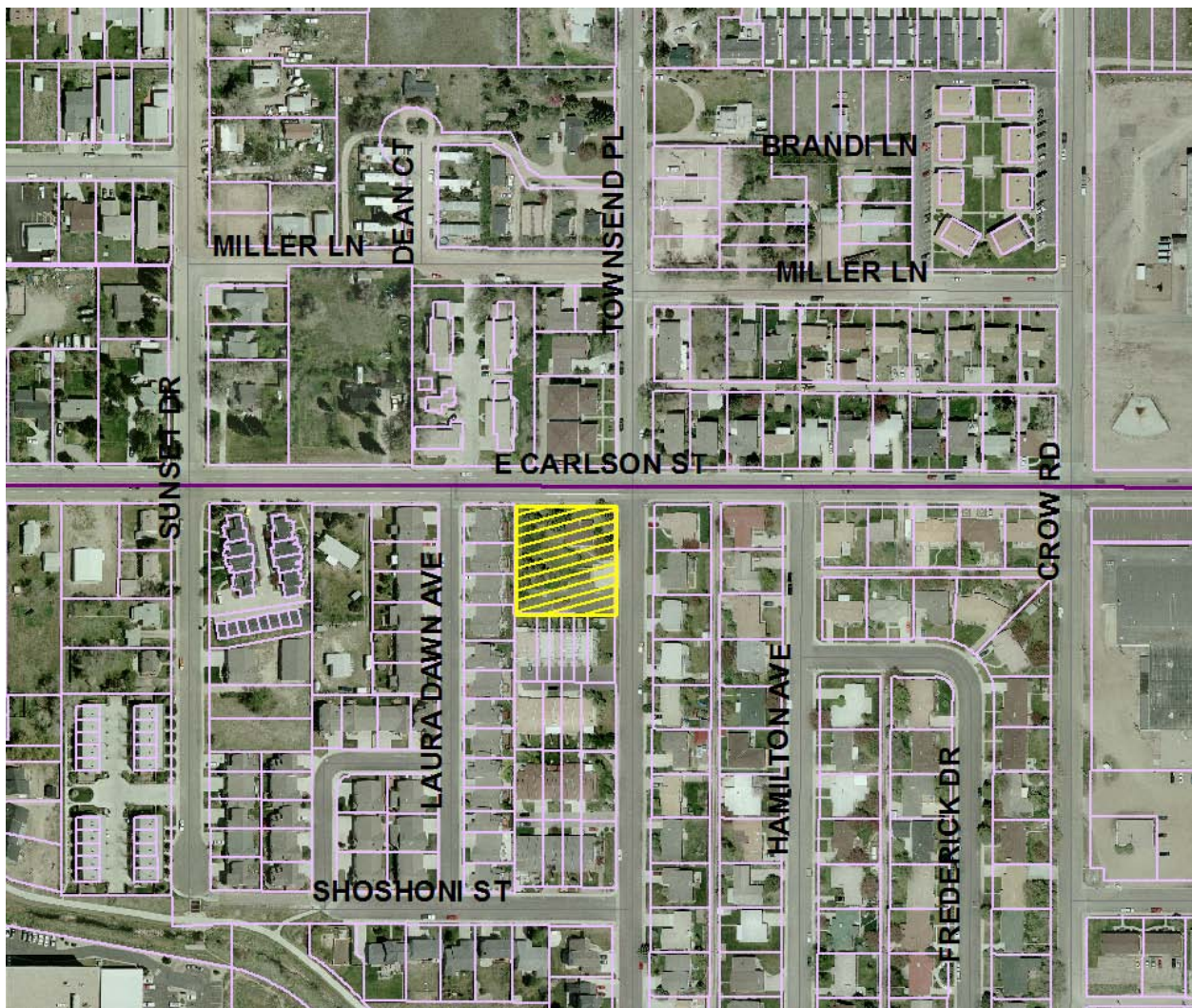
CASE NUMBER: A-11-03 **FILE CODE:** BRY-A

PUBLIC HEARING: October 10, 2011

RESOLUTION ADOPTED: October 24, 2011 (unanimous)

REQUIRED DOCUMENTS: All required documents have been submitted and reviewed by staff.

RECOMMENDATION: Adoption of Ordinance



November 7, 2011

ANNEXATION REPORT & STAFF REPORT**Stanczyk**
Summation

Annexation

CASE NUMBER: A-11-03 **FILE CODE:** BRY-A**OWNER:** Marion E Stanczyk Revocable Trust 307-421-1117
5618 Townsend Place
Cheyenne, WY 82001**AGENT:** John Steil 307-634-7273
c/o Steil Surveying Services, LLC
PO Box 2073
Cheyenne, Wyoming 82003**REQUEST:** Annexation to the City of Cheyenne**LOCATION:**

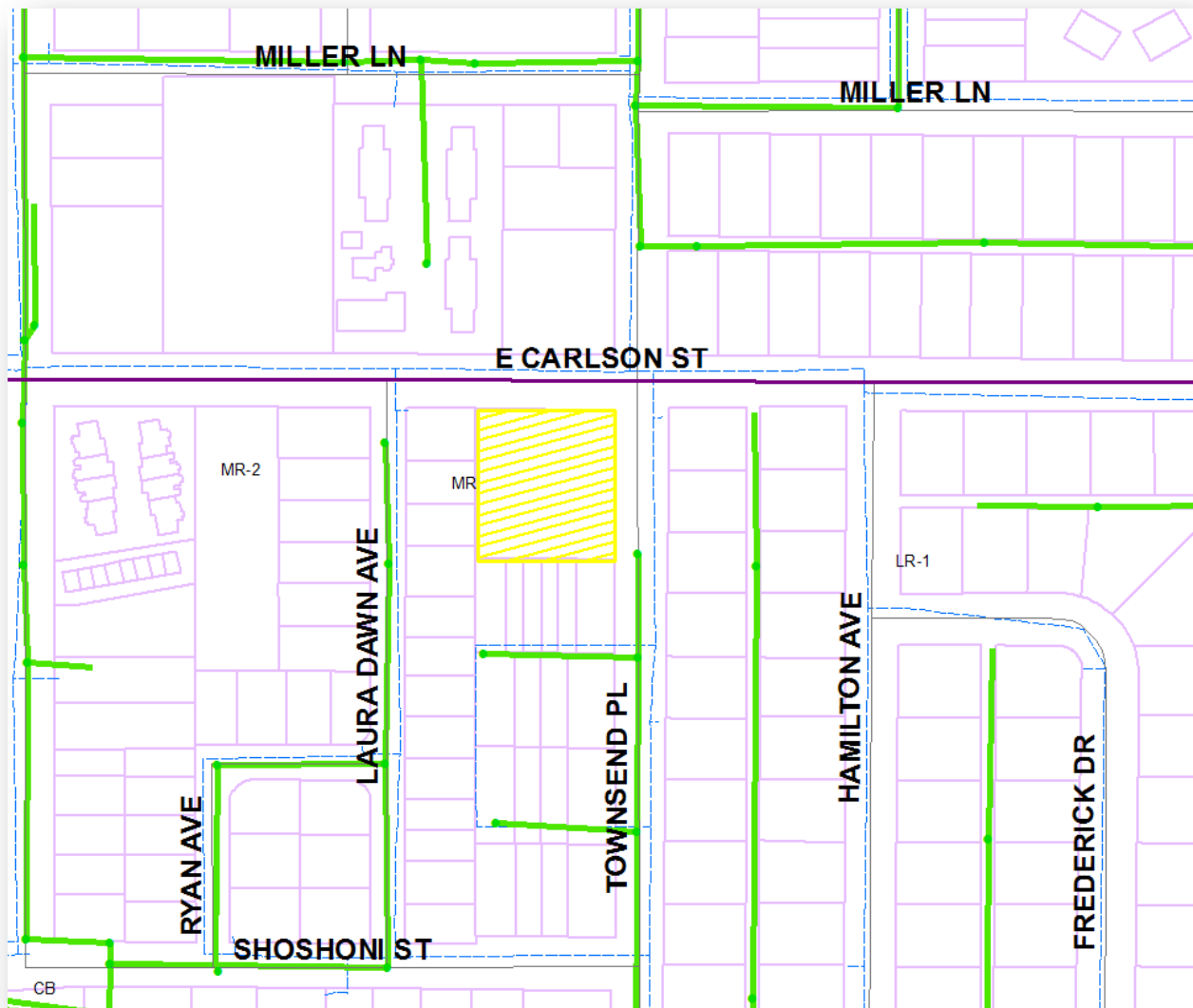
- (1) Legal Description: North 170 feet of Tract 6, Briney Tracts, Laramie County, Wyoming
- (2) Southwest corner of Carlson and Townsend
- (3) Address: 5618 Townsend Place
- (4) Map Page: D-62

CURRENT ZONING: MR**PROPOSED ZONING:** MR-2**EXISTING LAND USES:** Single-family residential (+/- 0.62 total acres)**PROPOSED LAND USE:** No change**COMPREHENSIVE PLAN DESIGNATIONS:** The land-use plan in PlanCheyenne indicates the following designations for the area: *Urban Residential*. This annexation area and areas beyond are projected for Urban Growth.**DESCRIPTION OF SITE AND SURROUNDINGS:**

SURROUNDING	LAND USE:	ZONING	ANNEXATION STATUS
North:	Condominiums	MR-2	City
South:	Townhomes	MR-2	City
East:	Single-family	LR-1	City
West:	Townhomes	MR-2	City



Facing the subject property looking north on Townsend



- **Annexation Area** – This annexation area contains a 0.62-acre parcel of land described as the north 170 feet of Tract 6, Briney Tracts. The property contains a house built in 1949 a detached garage and many mature trees. The property has been completely surrounded by the City since 1992.
- **Properties to the north** – Condominiums
- **Property to the south** – Townhomes
- **Properties to the east** – Single-family
- **Properties to the west** – Townhomes

CURRENT STATUS: The property contains a single-family home. The purpose of the annexation is to obtain sewer service for the house.

Improvements: The landowner will be required to comply with Chapter 1.16 of the Cheyenne City Code, which includes provisions for offsite improvements. Immediate improvements to the property include installing a sidewalk along the property's length along Townsend Place. Subsequent development actions on this property may trigger additional improvements to be made. The property

is currently served by City water (BOPU) and is being connected to sanitary sewer. Streets are in place.

Platting: The property is part of Tract 6, Briney Tracts, platted in 1936.

Zoning: The property was zoned MR-2 prior to the County's adoption of new land use regulations which changed the property to MR.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Survey: Site dimensions, legal description and boundary data for this Annexation Map appear in order.

Engineering: Sidewalk needs to be constructed along Townsend in accordance with City requirements in conjunction with connection to City water/sewer. Approximate cost for 120 LF of 6' wide attached sidewalk is \$3600, not including any costs of trimming trees or regrading. Reconstructing the existing driveway to comply with City standards is also not included.

Traffic Engineering: 1 The driveway approach on Townsend Place shall conform to the current regulations. The minimum and maximum widths and radii for a residential driveway approach is 10' and 36' and 5' and 10' respectively (ref. Ch. 4, Section 4.3.6, RSSPDS).

2. The property is adjacent to a street corner. The property owner is responsible for installation of sidewalk where none exists on the west side of Townsend Place. Sidewalk construction in accordance with current ADA Standards for Accessible Design will be required (Ordinance, 12.04.200)

Environmental Health: The property is contiguous to the City and is in the 201 Facilities Management area. The septic tank shall be properly abandoned and inspected by this office prior to covering the hole. If the well is abandoned it shall be done in accordance with State Groundwater Engineer Standards.

County Planning: Staff supports this annexation and would also support a cooperative plan to address the annexation of all County pockets.

AGENCIES RESPONDING WITHOUT COMMENT: BOPU, Drainage Engineer, Engineering Tech/GIS, Fire Department, MPO, Police, County Assessor, County Sheriff, School District, Cheyenne Light Fuel and Power.

AGENCIES NOT RESPONDING: Public Works, Bresnan/Optimum, County Fire District #2, Emergency Management, Laramie County Conservation District, Qwest/Century Link, County Attorney, County Commissioners, County Public Works.

OTHER COMMENTS RECEIVED: None

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body of any city or town, at a hearing as provided in W.S. 15-1-405, shall find that:

- 1) The annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town. **Findings:** Future required connections to City services in the Urban Area helps prevent overuse of the aquifer and possible contamination from septic systems. Urban densities are most appropriately served by full-time professional fire services and City police.

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- 2) The urban development of the area sought to be annexed constitutes a natural, geographical, economical, and social part of the annexing city or town. **Findings:** The property is 100% contiguous to the existing City boundary. The site is located within the PlanCheyenne comprehensive plan area, which includes the following land use designations on the future land use plan: *Urban Residential*.
- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed. **Findings:** The City has the capacity to serve more people and businesses with its water and sewer system. This area can be supported by City services, such as fire protection, police protection, and garbage collection. The proximity to existing urban development is an opportunity to provide City services in a fiscally responsible manner. PlanCheyenne advances urban development in this area and this area is located in the 201 boundary both of which would require new development to be connected to City sewer. Sewer service is available at the southern edge of the property in Townsend. The property already has water service from BOPU.
- 4) The area sought to be annexed is contiguous with the annexing city or town, or the area meets the requirements of W.S. 15-1-407. **Findings:** The property is 100% contiguous with existing City limits.
- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. **Findings:** Franchises are in place to serve this property.
- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405 (a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405 (a). **Findings:** The required information was sent September 12, 2011, to meet the requirement of this provision.

ANNEXATION REPORT DATA: In compliance with 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total estimated cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$3,600. Additional improvements may be required with subsequent development actions.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Sewer service is available to the property currently; water lines must be extended to the area in order to obtain City water service. Sanitation, police and fire services will be available upon annexation. These services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Projected fee for services described in paragraph (iii) (above) is \$50 per residence, per month, and a variable amount for commercial units, based upon volume.

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Residential Tap and System Development fees for water and sanitary sewer currently total \$5,490 for water and \$1,375 for sanitary sewer for a ¾-inch water tap size.

- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above, includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

Encl: Annexation Ordinance
Annexation Map
cc: File